

23TRCV02925 23TRCV02925

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-18

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Case Number: 23TRCV02925 Hearing Date: August 18, 2026 Dept: P

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. P

SVETLANA SANFILIPPO,¿

Plaintiff

Case No.:

23TRCV02925

vs.

[Tentative] RULING RE:¿¿

MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

¿

ENCHANT CHRISTMAS LLC; and DOES 1-20, inclusive,¿

¿

Defendants.

Hearing Date: August 18, 2026

Department P, Judge David K. Reinert

Motion for Leave to File a First Amended Complaint

Moving Party: Plaintiff Svetlana Sanfilippo

Responding Party: None

RULING

The court considered the moving papers and reply. Plaintiff's Motion for Leave to File a First Amended Complaint is GRANTED.

PROCEDURAL BACKGROUND

On September 6, 2023, Plaintiff Svetlana Sanfilippo ("Plaintiff") filed a complaint against Defendants Enchant Christmas LLC ("Enchant Christmas") and DOES 1 through 20, inclusive, alleging eight causes of action for: (1) Disability Discrimination in Violation of FEHA; (2) Sex Discrimination in Violation of FEHA; (3) Failure to Accommodate Physical Disability in Violation of FEHA; (4) Failure to Accommodate Condition Related to Pregnancy in Violation of FEHA; (5) Failure to Engage in the Interactive Process in Violation of FEHA; (6) Failure to Prevent Discrimination in Violation of FEHA; (7) Retaliation in Violation of FEHA; and (8) Wrongful Termination in Violation of Public Policy.

On December 28, 2023, Enchant Christmas filed a Motion to Compel Arbitration, which the court granted on May 15, 2024.

On December 18, 2025, Plaintiff filed a Motion to Lift Stay and Restore Case to Active Civil Docket, which the court granted on May 18, 2026.

On July 16, 2026, Plaintiff filed the instant motion. On August 7, 2026, Plaintiff filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that she was employed by Enchant Christmas as the Vice President of Marketing and Sponsorship from approximately April 4, 2022 until March 3, 2023. (Complaint, ¶ 5.) Plaintiff alleges that she informed Enchant Christmas that she was pregnant in June 2022. (Complaint, ¶ 6.) Plaintiff further alleges that during her employment with Enchant Christmas, Plaintiff suffered from a physical disability, which limited her major life activities. (Complaint, ¶ 7.) Plaintiff alleges that because her pregnancy was high-risk, she went on maternity leave on November 23, 2022, approximately three weeks early. (Complaint, ¶ 8.) Plaintiff alleges that she gave birth on November 25, 2022. (Complaint, ¶ 8.)

Next, Plaintiff alleges that she had communicated with Enchant Christmas about her return to work and had provided Enchant Christmas with all requested information regarding Plaintiff's leave. (Complaint, ¶ 9.) Plaintiff alleges that she offered to return to work prior to exhausting all of her available leave. (Complaint, ¶ 9.) Plaintiff alleges that Enchant Christmas

terminated Plaintiff's employment on March 3, 2023, while Plaintiff was out on leave. (Complaint, ¶ 10.) Plaintiff alleges that Enchant Christmas told Plaintiff that her position was being eliminated, while Enchant Christmas hired a functional replacement. (Complaint, ¶ 10.) Plaintiff alleges that Enchant Christmas terminated her employment due to Plaintiff's sex, disability, and request for accommodation. (Complaint, ¶ 11.)

LEGAL STANDARD

Under Code of Civil Procedure Section 473(a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., Section 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . ." (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or

added costs of preparation." (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, rule 3.1324(a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, rule 3.1324(b).)

DISCUSSION

Moving Party's Argument

Plaintiff seeks leave to file a first amended complaint ("FAC") to allege specific dollar amounts for damages. Plaintiff argues that Enchant Christmas will not be prejudiced by Plaintiff's proposed amendment because it is currently unrepresented by counsel and has not indicated that it intends to retain counsel or defend this action. Therefore, Plaintiff argues that there is no pending discovery such that no litigation strategy will be affected. Plaintiff argues that she is promptly bringing this motion following the restoration of her case to the active civil docket.

Opposing Party's Argument

No opposition was filed.

Reply Argument

Plaintiff notes that the instant motion is unopposed and argues that there has been no undue delay and Enchant Christmas will have a full and fair opportunity to respond to the proposed FAC.

Merits of the Motion

Plaintiff seeks to amend her complaint to allege specific dollar amounts as damages. Plaintiff's counsel declares that this proposed amendment "is necessary and proper to support a potential default judgment." (Hames Decl., ¶ 9.) Plaintiff's counsel points to the procedural history of Plaintiff's action, noting that Enchant Christmas's Motion to Compel Arbitration was previously granted, after which the parties proceeded to arbitration, the American Arbitration Association issued a written notice confirming that the arbitration matter was closed as withdrawn, and the court subsequently granted Plaintiff's Motion to Lift Stay and Restore Case to Active Civil Docket. (Hames Decl., ¶¶ 3-7.) Plaintiff's counsel declares that "a default is a real possibility" because Enchant Christmas "is currently unrepresented by counsel, has made no appearance in this action since the stay was lifted and has not indicated that they intend to retain counsel or participate in these proceedings." (Hames Decl., ¶ 9.)

Plaintiff's counsel further declares that Enchant Christmas will not be prejudiced by Plaintiff's proposed amendment because there is no pending discovery, there has been no undue delay, no trial date has been set, and Enchant Christmas has a fair opportunity to respond to Plaintiff's proposed FAC if Enchant Christmas chooses to appear. (Hames Decl., ¶ 10.)

The court finds that Plaintiff has substantially complied with the requirements of Rule 3.1324 by attaching a copy Plaintiff's redlined complaint and a copy of the proposed FAC to Plaintiff's counsel's declaration as Exhibits 1 and 2, respectively. Plaintiff's counsel's declaration explains that the effect of the proposed FAC is to allege specific dollar amounts for damages, which is necessary to support a potential default judgment, and Plaintiff was unable to amend while the proceedings in Plaintiff's action were stayed pending resolution of arbitration. Given that the substance of Plaintiff's complaint will remain unchanged, with the only changes concerning the specific dollar amounts alleged by Plaintiff as damages, the court finds that Enchant Christmas will not be prejudiced by Plaintiff's filing of her proposed FAC.

Accordingly, Plaintiff's Motion for Leave to File a First Amended Complaint is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Leave to File a First Amended Complaint is GRANTED.

Plaintiff is ordered to separately file the first amended complaint, serve Defendant with the new complaint, and timely file a proof of service.